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TAB 6



Board of Education Report

File #: Rep-128-23/24, **Version:** 1

Define and Approve Three Accessibility Enhancement Projects and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

December 12, 2023

Facilities Services Division and Division of Special Education

Action Proposed:

Define and approve three Accessibility Enhancement Projects at Halldale Elementary School, Strathern Elementary School, and Utah Street Elementary School (Utah Span School) (Projects), as described in Exhibit A, to support the implementation of the Board of Education (Board) approved Self-Evaluation and Transition Plan (Transition Plan) under the Americans with Disabilities Act (ADA) and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The total combined budget for the three proposed Projects is \$32,100,420.

Authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed Projects including budget modifications.

Background:

On October 10, 2017, the Board approved the Transition Plan under the ADA to further Los Angeles Unified efforts to comply with ADA Title II program accessibility requirements. The Transition Plan outlined Los Angeles Unified's proposed approach to providing program accessibility, which considers the characteristics of Los Angeles Unified, student population, variety of educational programs, as well as the existing level of accessibility. The Transition Plan established a specific approach and goals for achieving program accessibility within eight years through facility modifications and operational means.

Under the Transition Plan, each school is assigned to one of three levels of accessibility (Category One, Two, or Three) based on assessments of more than two dozen criteria, including school programs, matriculation options, feeder pattern, geographic location, known (or anticipated/matriculating) population of students with disabilities or parents/guardians with disabilities, type of instructional model, and public input. The assigned category reflects the level of accessibility the site needs to meet. Schools that do not yet meet the criteria for their assigned category will undergo accessibility improvements and are prioritized for project development based on the criteria mentioned above. The three categories of accessibility are as follows:

- Category One: These are “key” schools and will have the highest level of access, generally in accordance with applicable physical accessibility standards. Category 1A will provide “full accessibility” for the schools that were built to new construction standards, while Category 1B will provide “high accessibility” for schools that have been altered with some limited exceptions.
- Category Two: These will be “program-accessible” schools. The core spaces and features of these schools would be made accessible; in addition, program accessibility would be provided to all programs and activities at the school.

- Category Three: These schools will have “core access,” which means that the core spaces (certain common spaces) would be made accessible, to ensure a basic level of access to the building. These include, for example, parking, the main entrance and main office, assembly areas, and some restrooms.

The three school sites for which an Accessibility Enhancement Project is being proposed do not yet meet their assigned category/level of accessibility and thus require facilities improvements. The scope, schedule, and budget for each proposed Project reflects the existing known conditions at each school site and the improvements necessary to meet each schools’ assigned category of accessibility. The conditions of significance include acreage, topography, building square footage, existence of multi-story buildings, age of buildings, as well as the number of schools, programs, features, and activities at a school site.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens’ Oversight Committee (BOC) at its meeting on November 30, 2023. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified’s ability to successfully complete the Facilities SEP.

Expected Outcomes:

Define and approve three Accessibility Enhancement Projects, as described in Exhibit A, and adopt the proposed amendment to the Facilities SEP to incorporate therein. Approval will authorize staff to proceed with the implementation of the proposed Projects.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the expenditure of Bond Program funds to immediately begin designing the proposed Projects at three school sites.

If the Board does not approve the proposal, staff will be unable to initiate the three proposed Accessibility Enhancement Projects, which are necessary to achieve program accessibility as outlined in the Transition Plan, which is required for compliance with Section 504 of the Rehabilitation Act and the ADA.

Policy Implications:

The proposal furthers implementation of the Transition Plan. As outlined in the Transition Plan, at Category One, Two and Three schools, an appropriate number of classrooms will be identified to serve as accessible learning spaces, some of which may require facility improvements to meet the criteria for their assigned accessibility category.

Any potential future room changes by Administrators or Principals will be reviewed by the Division of Special Education, the ADA Compliance Administrator, and the Facilities Services Division to ensure that new accessibility problems are not created as a result of the classroom moves. This will be done in close coordination with school staff to ensure disruptions are minimized.

Budget Impact:

The total combined budget, as currently estimated, for the three proposed Projects is \$32,100,420. The proposed Projects will be funded with Bond Program funds earmarked specifically for ADA Transition Plan Implementation.

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Each project budget was prepared based on the current information known, and assumptions about the proposed project scope, site conditions, and market conditions. Individual project budgets will be reviewed throughout the planning, design, and construction phases as new information becomes known or unforeseen conditions arise and will be adjusted accordingly to enable the successful completion of each proposed Project.

Student Impact:

The three proposed Projects will remove barriers to program accessibility for students, staff and qualified members of the community and ensure that all have an equal opportunity to access programs and activities at each campus.

Equity Impact:

Facilities works to coordinate Los Angeles Unified efforts under the ADA to ensure programs are accessible by students, staff, parents, and community members with disabilities.

Issues and Analysis:

Both Title II of the ADA and Section 504 of the Rehabilitation Act of 1973 impose broad-reaching prohibitions against discrimination on the basis of disability. As to facilities, a key requirement for both the ADA and Section 504 is program accessibility: programs, benefits, services, and activities provided by public entities must be accessible to people with disabilities. This means that a qualified individual with a disability is not to be discriminated against because the entity's facilities are inaccessible; however, this does not necessarily mean that all facilities must be accessible. While both laws do require that newly constructed and altered facilities meet stringent accessibility requirements, they do not require that all existing facilities meet those standards, so long as the programs and services provided in those facilities are made accessible to people with disabilities. A program or service can be made accessible by relocating it, providing it in a different manner, or utilizing some other strategy to ensure that people with disabilities have an equal opportunity to benefit from the entity's programs and activities. These proposed Projects are in alignment with Los Angeles Unified's implementation of the Board-approved Transition Plan.

The Office of Environmental Health and Safety (OEHS) will evaluate the proposed Projects in accordance with the California Environmental Quality Act (CEQA).

Attachments:

Exhibit A - Define and Approve Three Accessibility Enhancement Projects

Exhibit B - Student Eligibility by Program at Three Schools

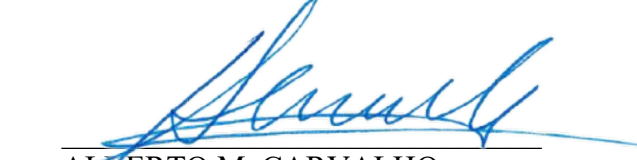
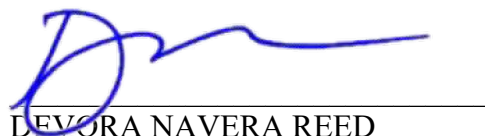
Exhibit C - BOC Resolution

Informatives:

None

Submitted:

11/07/23

RESPECTFULLY SUBMITTED,
ALBERTO M. CARVALHO
Superintendent**APPROVED BY:**
PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations**REVIEWED BY:**
DEVORA NAVERA REED
General Counsel☒ Approved as to form.**APPROVED & PRESENTED BY:**
DAVID D. HART
Chief Business Officer
Office of the Chief Business Officer**REVIEWED BY:**
NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance☒ Approved as to budget impact statement.



LOS ANGELES UNIFIED SCHOOL DISTRICT

Board of Education Report

Exhibit A

Define and Approve Three Accessibility Enhancement Projects

1. Halldale Elementary School Accessibility Enhancement Project

Region South, Board District 7 (Tanya Ortiz Franklin)

Project Background and Scope: The Halldale Elementary School site spans 6.69 acres and is comprised of one traditional Universal Transitional Kindergarten (UTK)-5 elementary program. The building area is approximately 44,769 square feet and includes four single-story permanent buildings, and 10 relocatable buildings. The permanent buildings were constructed between 1947 and 1997. As of the 2023-2024 Electronic Capacity Assessment Review (E-CAR), the school served approximately 445 students and currently 100 students have been identified as having a disability.

The site has been assigned a Category Two accessibility level. In order to meet the criteria for Category Two, various upgrades to 10 buildings are required, including: correction, installation, or replacement of, one permanent wheelchair lift, 10 restroom upgrades, four concrete ramps, one arcade, three assembly seating area upgrades, six metal ramps, eight drinking fountain upgrades, 12 path of travel upgrades, one parking lot upgrade, one changing room with toilet, other accessibility upgrades such as door hardware, playground components/matting, railings, and any other required improvements or mitigations to ensure programmatic access and compliance with local, state and/or federal facilities requirements.

Project Budget: \$12,188,327

Project Schedule: Construction is anticipated to begin in Q3-2026 and be completed in Q1-2028.

2. Strathern Elementary School Accessibility Enhancement Project

Region North, Board District 6 (Kelly Gonez)

Project Background and Scope: The Strathern Elementary School site spans 6.39 acres and is comprised of one traditional UTK-5 elementary school program. The building area is approximately 45,148 square feet and includes 19 single-story permanent buildings, one multi-story permanent building, and eight relocatable buildings. The permanent buildings were constructed between 1948 and 1990. As of the 2023-2024 E-CAR, the school served approximately 470 students and currently 78 students have been identified as having a disability.

The site has been assigned a Category Three accessibility level. In order to meet the criteria for Category Three, various upgrades to 13 buildings are required, including: correction, installation, or replacement of nine restroom upgrades, four assembly seating area upgrades, one changing room, four drinking fountain upgrades, 20 path of travel upgrades, other accessibility upgrades such as door hardware, playground components/matting, railings, and any other required improvements or mitigations to ensure programmatic access and compliance with local, state and/or federal facilities requirements.

Project Budget: \$6,259,886

Project Schedule: Construction is anticipated to begin in Q3-2026 and be completed in Q1-2028.



LOS ANGELES UNIFIED SCHOOL DISTRICT

Board of Education Report

Exhibit A

Define and Approve Three Accessibility Enhancement Projects

3. Utah Span School Accessibility Enhancement Project

Region East, Board District 2 (Rocio Rivas)

Project Background and Scope: The Utah Span School site spans 5.15 acres and is comprised of one traditional UTK-8 span school program. The building area is approximately 76,800 square feet and includes three single-story permanent buildings, four multi-story permanent buildings and one relocatable building. The permanent buildings were constructed between 1937 and 1970. As of the 2023-2024 E-CAR, the school served approximately 350 students and currently 118 students have been identified as having a disability.

The site has been assigned a Category Two accessibility level. In order to meet the criteria for Category Two, various upgrades to seven buildings are required, including: correction, installation, or replacement of one new elevator, one permanent wheelchair lift, 11 restroom upgrades, one concrete ramp, six drinking fountain upgrades, one parking lot upgrade, 16 path of travel upgrades, three assembly seating area upgrades, other accessibility upgrades such as door hardware, playground components/matting, railings, and any other required improvements or mitigations to ensure programmatic access and compliance with local, state and/or federal facilities requirements.

Project Budget: \$13,652,207

Project Schedule: Construction is anticipated to begin in Q3-2026 and be completed in Q1-2028.

Exhibit B

Student Eligibility by Program at Three Schools

Disability Category	Halldale ES	Strathern St ES	Utah Span School
Intellectual Disability (ID)	13	0	19
Hard of Hearing (HH)	0	0	<11
Deafness (DEAF)/Hearing Impairment (HI)	0	0	21
Speech or Language Impairment (SLI)	14	17	13
Visual Impairment (VI)	0	0	0
Emotional Disturbance (ED)	0	0	0
Orthopedic Impairment (OI)	0	<11	0
Other Health Impairment (OHI)	<11	<11	<11
Specific Learning Disability (SLD)	22	<11	18
Multiple Disabilities (MD)	<11	<11	<11
Autism (AUT)	40	48	25
Traumatic Brain Injury (TBI)	0	0	0
Grand Total	100	78	118

To ensure confidentiality of individual students results and compliance with Los Angeles Unified policy and State guidelines, data is suppressed if the number of students included in calculations is less than 11.

LOS ANGELES UNIFIED SCHOOL DISTRICT

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

Margaret Fuentes, Chair

LAUSD Student Parent

D. Michael Hamner, FAIA, Vice-Chair

American Institute of Architects

Samantha Rowles, Secretary

LAUSD Student Parent

Robert Campbell, Executive Committee

L.A. Co. Auditor-Controller's Office

Scott Pansky, Executive Committee

L.A. Area Chamber of Commerce

Neelura Bell

CA Charter School Association

Chad Boggio

L.A. Co. Federation of Labor AFL-CIO

Jeffrey Fischbach

CA Tax Reform Assn.

Aleigh Lewis

L.A. City Controller's Office

Patrick MacFarlane

Early Education Coalition

Jennifer McDowell

L.A. City Mayor's Office

Brian Mello

Assoc. General Contractors of CA

Dr. Clarence Monteclaro

Tenth District PTSA

William O. Ross IV31st District PTSA**Connie Yee (Alternate)**

L.A. Co. Auditor-Controller's Office

Vacant

AARP

Joseph P. Buchman – Legal Counsel

Burke, Williams & Sorensen, LLP

Lori Raineri and Keith Weaver – Oversight Consultants

Government Financial Services Joint Powers Authority

Timothy Popejoy

Bond Oversight Administrator

Perla Zitle

Bond Oversight Coordinator

RESOLUTION 2023-42

BOARD REPORT 128-23/124

**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THREE
ACCESSIBILITY ENHANCEMENT PROJECTS, AND AMEND THE FACILITIES SERVICES
DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, Los Angeles Unified School District (District) Staff proposes that the Board of Education (Board) define and approve three Accessibility Enhancement Projects at Halldale Elementary School, Strathern Elementary School, Utah Span School (Projects), to support the implementation of the Board approved Self-Evaluation and Transition Plan (Transition Plan) under the Americans with Disabilities Act (ADA), and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) accordingly; and

WHEREAS, District Staff also requests that the Board authorize the Chief Procurement Officer and/or the Chief Facilities Executive and/or their designee(s) to execute all instruments necessary, as legally permissible, to implement the proposed Projects including budget modifications and the purchase of equipment and materials; and

WHEREAS, Under the Transition Plan, each school is assigned to one of three levels of accessibility (Category One, Two, or Three) based on assessments of more than two dozen criteria, including school programs, matriculation options, feeder pattern, geographic location, known (or anticipated/matriculating) population of students with disabilities or parents/guardians with disabilities, type of instructional model, and public input. The assigned category reflects the level of accessibility the site needs to meet. Schools that do not yet meet the criteria for their assigned category will undergo accessibility improvements and are prioritized for project development based on the criteria mentioned above. The three categories of accessibility are as follows:

- Category One: These are “key” schools and will have the highest level of access, generally in accordance with applicable physical accessibility standards. Category 1A will provide “full

RESOLUTION 2023-42**RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THREE ACCESSIBILITY ENHANCEMENT PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

accessibility” for the schools that were built to new construction standards, while Category 1B will provide “high accessibility” for schools that have been altered with some limited exceptions; and

- Category Two: These will be “program-accessible” schools. The core spaces and features of these schools would be made accessible; in addition, program accessibility would be provided to all programs and activities at the school; and
- Category Three: These schools will have “core access,” which means that the core spaces (certain common spaces) would be made accessible, to ensure a basic level of access to the building. These include, for example, parking, the main entrance and main office, assembly areas, and some restrooms; and

WHEREAS, The three school sites for which an Accessibility Enhancement Project is being proposed do not yet meet their assigned category/level of accessibility and thus require facilities improvements. The scope, schedule, and budget for each proposed Project reflects the existing known conditions at each school site and the improvements necessary to meet each schools’ assigned category of accessibility. The conditions of significance include acreage, topography, building square footage, existence of multi-story buildings, age of buildings, as well as the number of schools, programs, features and activities at a school site; and

WHEREAS, The total combined budget, as currently estimated, for the three proposed Projects is \$32,100,420 and will be funded by Bond Program funds embarked specifically for ADA Transition Plan Implementation; and

WHEREAS, Construction of the three Accessibility Enhancement Projects are anticipated to begin in the third quarter of 2026 and be completed in the first quarter of 2028; and

WHEREAS, District Staff has stated that the Office of General Counsel has concluded that expenditures of the intended bond funds for these projects are legally permissible under State and Federal law including with respect to applicable federal tax-exempt bond requirements; and

WHEREAS, District Staff has determined that the proposed Projects are necessary to improve student health, safety, and educational quality; and

WHEREAS, District Staff has concluded that this proposed Facilities SEP amendment will facilitate Los Angeles Unified’s ability to successfully complete the Facilities SEP.

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Bond Citizens' Oversight Committee recommends that the Board define and approve three Accessibility Enhancement Projects to support the implementation of the Transition Plan, and amend the Facilities SEP, accordingly, as described in Board Report No. 128-23/24, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.

RESOLUTION 2023-42

RECOMMENDING BOARD APPROVAL TO DEFINE AND APPROVE THREE ACCESSIBILITY ENHANCEMENT PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN

2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. Los Angeles Unified is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District

ADOPTED on November 30, 2023, by the following vote:

AYES: 8

ABSTENTIONS: 1

NAYS: 0

ABSENCES: 5

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair